



KIOWA TRIBE

P.O. Box 369 • Carnegie, Oklahoma • 73015
Phone: (580) 654-6338 • Fax: (580) 654-1788
OFFICE OF THE LEGISLATURE

KIOWA TRIBE RESOLUTION KL-CY-2025-031

THE FIRST AMENDMENT TO THE EQUITY IN SOCIAL MEDIA ACCESS BY GOVERNMENT BRANCHES ACT OF 2025

WHEREAS, the Kiowa Tribe is a sovereign nation and has been so since time immemorial; and,

WHEREAS, the Tribe exercises full enjoyment of the inherent powers of government, including self-determination and autonomy over internal affairs encompassing Tribe citizens, lands, and resources; and,

WHEREAS, on April 17, 2017, qualified voters of the Tribe ratified the Kiowa Constitution as “the supreme law of the land”; and,

WHEREAS, the Kiowa Legislature is vested with the agency to pass laws and resolutions pursuant to Article VI, Section 6(a) of same Constitution; and,

WHEREAS, on September 13, 2025, the Legislature passed The Equity in Social Media Access by Government Branches Act of 2025, which was signed into law by Chairman Spottedbird six days later; and,

WHEREAS, repeated violations of same law have occurred since October 29, 2025; and,

WHEREAS, the Legislature has identified the imperative to clarify provisions of the statutory infrastructure governing regulatory actions taken by the Executive Branch of the Tribe that suppress transparent online discourse among Tribe citizens;

NOW THEREFORE IT BE RESOLVED that the Legislature hereby adopts THE FIRST AMENDMENT TO THE EQUITY IN SOCIAL MEDIA ACCESS BY GOVERNMENT BRANCHES ACT OF 2025.

CERTIFICATION

The foregoing Resolution KL-CY-2025-031 was duly voted upon by the Legislature on December 13, 2025, at a Legislative Regular Session CIV-(104), with a vote of (5) in favor and (0) opposed, (0) abstaining, and (2) absent, according to the authority vested in the Legislature by the Constitution of the Kiowa Tribe.

Michael Primus
Speaker of the Legislature

Recorded on Kiowa Tribe Website: November 06, 2025. Read into Record by: Cole DeLaune, District 4, at Legislative Regular Session CIII-(103).
Legislative Public Hearing XII, December 12, 2025. Legislative Regular Session CIV, December 13, 2025.
No; Háun á – Abstain; Héngyádau – Absent



LEGISLATIVE RESOLUTION – KL-CY-2025-031

Sponsors: Cole DeLaune, District 4

Co-Sponsors:

LEGISLATORS	YES Hàu	NO Hàu:né	ABSTAIN Háun á	ABSENT Héngyádàu
Kyle Ataddlety District 1	X			
Michael Primus District 2	X			
Timothy Satepauhoodle District 3				X
Cole DeLaune District 4	X			
Tiya Rosario District 5	X			
Ben Wolf District 6	X			
Warren Queton District 7				X Out of District

DELIVERY OF THE RESOLUTION AND LAW TO THE CHAIRMAN

Resolution No. KL-CY-2025-00X was presented to the Chairman of the Kiowa Tribe on the 19th day of December, 2025, pursuant to the Article VI, Section 8(a)(iv) of the Constitution of the Kiowa Tribe, and will become effective after signature by the Chairman or veto override by the Legislature, and as otherwise required by the Constitution.



Michael Primus
Speaker of the Legislature

CHAIRMAN'S ACTION:

☐ APPROVED

☐ VETO - RETURNED TO LEGISLATURE WITH EXPLANATION:

On this ____ day of _____, 2025.

Lawrence Spottedbird
Chairman of the Kiowa Tribe

Presented by the Chairman to the Legislature on the ____ day of _____, 2025.

LEGISLATURE'S ACTION:

Override of Chairman's veto:

☐ YES

☐ NO

LEGISLATIVE OVERRIDE ORDER: KLO-CY-2025-0XX

LEGISLATORS	YES	NO	ABSTAIN	ABSENT
Kyle Ataddlety District 1				
Michael Primus District 2				
Timothy Satepauhoodle District 3				
Cole DeLaune District 4				
Tiya Rosario District 5				
Ben Wolf District 6				
Warren Queton District 7				

C E R T I F I C A T I O N

The foregoing Legislative Order, KLO-CY-2025-00X was duly voted upon by the Legislature on _____, 2025, at a Legislative Override Order Session with a vote of _____ in favor and _____ opposed, and _____ abstaining, _____ Absent. Pursuant to the authority vested in the Legislature by the Constitution of the Kiowa Tribe.

Michael Primus
Speaker of the Legislature

Section 1.1 Short Title

This enactment shall be cited as “The First Amendment to the Equity in Social Media Access by Government Branches Act of 2025.”

Section 1.2 Purpose and Policy

These provisions are enacted to promote transparency of communication by Tribe government to Kiowa citizens and to delineate the specific mechanics of operational access for all branches of same government to both present and future social media accounts created on behalf of the Kiowa Tribe in aggregate. It shall be the policy of the Tribe to permit persons to publish on Tribe social media platforms identified herein from each of the four branches of government established by the Kiowa Constitution: Kiowa Indian Council, Executive, Legislative, and Judicial. No provisions in this Act shall be construed to apply to preexisting social media accounts created on behalf of clearly identified individual Tribe Departments, Commissions, or Legislative Districts.

Section 1.3 Primacy

To the extent there is a conflict, this Act supersedes and replaces all prior and existing internal Executive Branch policies, regulations, or rules whether written, verbal, official, or informal.

Section 1.4 Definitions

This section shall govern the definitions of the enumerated words and phrases used within this policy. All words not defined herein are applied consistent with standard and quotidian usage.

- (a) “social media account” shall mean any social networking page, blog, microblog, chat room, message board, discussion group, or platform that serves similar functions including, by way of example and without limitation, Facebook, TikTok, YouTube, Instagram, or X (formerly Twitter).
- (b) “page,” “profile,” and “account” shall mean a web page accessible to the public or to guests that provides information about the entity which created same social media page, profile, or account.
- (c) “Tribe social media account” shall mean a social media account created, maintained, and/or curated on behalf of the Tribe as a whole, whether by the Media and Outreach Department **or any other employee, official, or appointee of the Executive Branch.**

- (d) “Media and Outreach Department” shall mean the Tribe Department identified by same designation in the Annual Budget for Fiscal Year 2024 – 2025 and under the umbrella of the Tribal Operations Division in organization charts published by the Executive Branch on July 1, 2024; November 1, 2024; and March 1, 2025.
- (e) “Communications Director” shall mean the most senior position delineated within the scope of the Media & Outreach Department in the Annual Budget of the Tribe approved by Kiowa voters for Fiscal Year 2024 – 2025 whether identified by same or other title in day-to-day operations of the Department.

Section 1.5 Establishment of Regulatory Guidelines for Tribe Social Media Accounts

Management of organizational access to a Tribe social media account shall be the responsibility of the Communications Director and the Media and Outreach Department of the Tribe. Tribe social media accounts already established on the effective date of this Act – including the Facebook page The Kiowa Tribe – shall be governed by this Act and its enumerated provisions. Within seven (7) calendar days of same effective date, the Communications Director shall:

- (a) Update access to The Kiowa Tribe Facebook Page identified as of September 11, 2025, as “The official page of the Kiowa Tribe” by: (i) granting Page access to the Chairman of the Tribe; Speaker of the Legislature and their selected designee; Chief Justice of the Kiowa Supreme Court and their selected designee; and the Kiowa Indian Council Coordinator and (ii) transmitting current passwords, as applicable, for the Page to the Chairman of the Tribe; Speaker of the Legislature and their selected designee; Chief Justice of the Kiowa Supreme Court and their selected designee; and the Kiowa Indian Council Coordinator.
- (b) Create and maintain a record of all Media and Outreach Department personnel with The Kiowa Tribe Facebook Page access and/or passwords.
- (c) Remove blocks of any present elected/appointed officials or citizens of the Tribe to The Kiowa Tribe Facebook Page.
- (d) Transmit to the Legislature and Executive Branch any and all records regarding monetization of The Kiowa Tribe Facebook Page including documentation of any payments rendered via the Page.
- (e) Remove existing Page access from any and all accounts belonging to persons who are simultaneously not citizens or employees of the Tribe.

Creation of any additional Tribe social media account shall fall within the scope of duties of the Communications Director. No parties who are not employees of the Tribe may create new social media accounts on its behalf. Within three (3) days of the creation of any such account, the Communications Director shall:

- (f) Ensure publication and administrative access for the Chairman of the Tribe, Speaker of the Legislature and their designee; Chief Justice of the Kiowa Supreme Court and their designee; and Kiowa Indian Council Coordinator by (i) granting account access and/or (ii) transmitting to the enumerated parties all applicable passwords to the newly established accounts.
- (g) Create and maintain a record of all Media and Outreach Department personnel with account access and/or passwords.
- (h) Ensure no monetization functions are implemented nor payments disbursed via the account.

Section 1.6 Publication, Administrative, and Oversight Authorities

Persons that may publish or take administrative action on a Tribe social media account include:

- (a) The Kiowa Communications Director and any Media and Outreach Department personnel invested with same authority by the Director;
- (b) The Chairman of the Tribe;
- (c) The Speaker of the Legislature or Interim Speaker, as applicable, or his designee;
- (d) The Chief Justice of the Supreme Court, or his designee; and
- (e) The Kiowa Indian Council Coordinator.

All persons invested with authority to publish or take administrative action on a Tribe social media account shall obey the terms of use and/or the terms of service stipulated by the hosting website providing same social media accounts. The Communications Director shall be responsible for ensuring that all content visible on a Tribe social media account that can be accessed through the social media account is compliant with the terms of use and/or terms of service of the hosting website, this Act, and any other applicable Tribal, state, or federal laws. Any content that is non-compliant with applicable Tribal, state, or federal laws shall be removed by the Communications Director as soon as it is identified on a Tribe social media account.

The Communications Director and Chairman of the Tribe may publish compliant content submitted by Executive Directors or other Executive Branch personnel on Tribe social media accounts.

Publication of compliant content from other respective branches of government shall be at the discretion of the Speaker of the Legislature and/or their designee, Chief Justice of the Supreme Court and/or their designee, and the Kiowa Indian Council Coordinator. The Communications Director shall be responsible for reviewing all comments posted to Tribe social media accounts. Neither the Communications Director nor any Executive Branch employee, official, or appointee may remove content published by the Speaker of the

Legislature and/or their designee; Chief Justice of the Kiowa Supreme Court and/or their designee; or the Kiowa Indian Council Coordinator unless same content is non-compliant with Tribal, state, or federal law.

The Communications Director shall change the password and update access for all applicable Tribe social media accounts each time a person with individual authority is removed, resigns from, or becomes ineligible to discharge the duties of their respective position, or each time subordinate Media and Outreach Department personnel with password access cease to work for same Department. When a Communications Director ceases to work for the Tribe, or changes positions such that administering Tribe social media accounts is no longer reasonably related to his or her job requirements, the Media and Outreach Department staff member with successive seniority shall remove same Communications Director from Tribe social media accounts access and transmit updated passwords as applicable to the enumerated officials and employees with publication and administrative authority. Persons who are neither a Member nor an employee of the Tribe shall not have password access to any Tribe social media accounts.

Receipt of payouts by any party in an individual capacity from the monetization of any Tribe social media account shall be unlawful and may be prosecuted as a crime or civilly and may be subject to civil penalty as provided by law.

Section 1.7 Content of a Tribe Social Media Account and Prohibitions

All content published to a Tribe social media account or that can be accessed through same social media account shall comply with the terms of use and/or terms of service of the hosting website, this policy, and, and any other applicable Tribal, state, or federal laws. The following content shall not be posted to a Tribe social media account:

- (a) Content that promotes personal gain or objectives, including, by way of example, campaigning activities, endorsements of political candidates, or the solicitation of business opportunities, customers, goods, or money for the personal advancement of any Tribe official.
- (b) Content that condones or includes drugs, illegal activity, illegal use of weapons, violence, slurs, obscenity, or nudity.
- (c) Content that is copyrighted, patented, or trademarked unless proper authorization to post same content has been documented.
- (d) Content that may be reasonably interpreted as an attack on individuals or groups of people on the basis of race, ethnicity, sex, national origin, sexual orientation, gender, gender identity, religious affiliation, age, disability, or serious disease.

Removal of any content that violates this Act shall be the responsibility of the Communications Director and any designated Media and Outreach Department personnel.

No content published by the Speaker of the Legislature and/or his designee; the Chief Justice of the Kiowa Supreme Court and/or his designee; or the Kiowa Indian Council Coordinator may be removed from a Tribe social media account except for these prohibitions. In the instance of any such removal, the Communications Director or their Media and Outreach Department designee shall document the removed content via screenshot and a written record of the provision violated by same content. The Communications Director and Media and Outreach Department shall maintain a digital archive of such removals, documentation pertaining to any of which shall be provided to the Chairman, Legislature, Judicial Branch, or Office of the KIC Coordinator within forty-eight (48) hours of written request.

Section 1.8 Comments and Prohibitions

Tribe social media accounts shall permit public comments as functionally possible and permitted by the platform hosting any such account. No comment from a Member of the Tribe shall be removed merely on the basis of voicing criticism or negativity regarding the Tribe, any branch of Tribe government, or any elected or appointed Tribe official. No Member of the Tribe shall be blocked or suspended from publishing comment to a Tribe social media account ~~in perpetuity~~. The Communications Director or designated personnel in the Media and Outreach Department shall remove comments including:

- (a) Foul language, vulgarity, slurs, or threats.
- (b) Comments that are, or appear to be, patently untrue following documented efforts to verify the veracity of the comment.
- (c) Comments that condone drugs, illegal activity, illegal use of weapons, violence, or harassment.
- (d) Comments that include visual obscenity.
- (e) Comments that may be reasonably interpreted as an attack or incitement against individuals or groups of people on the basis of race, ethnicity, sex, national origin, sexual orientation, gender, gender identity, religious affiliation, age, disability, or serious disease.

No anonymous comments shall be permitted to a Tribe social media account. Accounts clearly identified by aliases created through the algorithm of a respective social media platform that violate the provisions of this section may be blocked from Tribe social media accounts.

Before removing any comments published to a Tribe social media account, the Communications Director or their Media and Outreach Department designee shall document the removed comments via screenshot and a written record of the provision violated by same comments. The Communications Director and Media and Outreach Department shall maintain a digital archive of such removals, documentation pertaining to

any of which shall be provided to the Chairman, Legislature, Judicial Branch, or Office of the KIC Coordinator within forty-eight (48) hours of written request.

If information is posted but not removed under this section, and a person who is the subject of the posting believes it should be removed, then the person who is the subject of the posting may petition the Chairman for public correction based on one of the reasons set forth in this Section.

Section 1.9 Referrals to Law Enforcement

The Tribe reserves the right to advise the Kiowa Police Department or any other law enforcement agency of suspected crime documented or referenced on a Tribe social media account. When a credible threat is issued on a Tribe social media account against a specific person, entity, or group of people, the Communications Director shall forward documentation of same threat to the Kiowa Police Department and any other law enforcement agency as applicable.

Section 1.10 Contingencies

- (a) Should the Communications Director and/or the Media and Outreach Department fail to fulfill the mandates of Section 1.5 of this Act, payroll and access to Tribe funds approved for operational costs of the Department in the Annual Budget shall suspend on the fifteenth (15th) day following the conclusion of the timetables established in same Section. The Department shall not be able to access Tribe monies appropriated via Budget or Budget Modification until Page access and passwords, as applicable, are transmitted to the designated officials from each branch of Tribe government.
- (b) Should a vacancy occur in the role of the Communications Director at any time following the enactment of these provisions, the duties assigned herein to same role shall be the responsibility of the other Media and Outreach Department employee(s) with the most seniority.
- (c) Should any employee, official, or appointee of the Executive Branch remove content published by the Speaker of the Legislature and/or his designee, the Chief Justice of the Kiowa Supreme Court and/or his designee, or the Kiowa Indian Council Coordinator in violation of this enactment, then \$100 shall be suspended from their next scheduled payroll disbursement for each discrete violation.
- (d) Should the Media and Outreach Department fail to respond to requests from the Chairman, Legislature, Judicial Branch, or Office of the Kiowa Indian Council

within forty-eight (48) hours of written requests for documentation of removed content or comments, payroll for the Media and Outreach Department shall suspend in an amount commensurate to the rate of compensation for forty-eight (48) hours prior to the issuance of the next scheduled payroll disbursement.

- (e) Receipt of payment in violation of this Section shall be unlawful, and may be prosecuted as a crime or civilly and may be subject to civil penalty as provided by law.

Section 1.11 Effective Date

This Act shall be effective upon signature of the Chairman of the Kiowa Tribe or upon signature of the Speaker of the Kiowa Legislature following legislative override of a veto by the Chairman. All timetables established by enactment of this law shall commence with any such signature.



KIOWA TRIBE

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OFFICE OF THE LEGISLATURE

MEMORANDUM

To: Lawrence Spottedbird, Chairman of the Kiowa Tribe

From: Michael Primus, Speaker of the Legislature *MP*

Date: Monday, December 22, 2025

Subject: Delivery to the Chairman's Office – (5) Resolution: "KL-CY-2025-029, KL-CY-2025-030, KL-CY-2025-031, KL-CY-2025-032, KL-CY-2025-033."

Delivery of Law

The Kiowa Tribe Legislature held Regular Session CIV-(104), on Saturday, December 13, 2025. In accordance with the Kiowa Tribe Constitution, Article VI-Legislature, Section 7. Session, (a). The Legislative Speaker, Michael Primus, is hereby delivering approved resolutions to the Chairman's Office, in accordance with Article VII – Executive Branch, Section 4., (f).

- a. Resolution KL-CY-2025-029 2025 The Signature Succession Act. Sponsor-Cole DeLaune, District 4.
- b. Resolution KL-CY-2025-030 Second Amendment to the Sponsorship Act. Sponsor-Cole DeLaune, District 4.
- c. Resolution KL-CY-2025-031 First Amendment to the Equity in Social Media Access by Government Branches Act. Sponsor-Cole DeLaune, District 4.
- d. Resolution KL-CY-2025-032 The Direct Aid to Kiowa Families Act of 2025. Sponsor-Cole DeLaune, District 4.
- e. Resolution KL-CY-2025-033 The Emergency Housing Act of 2025. Sponsor-Cole DeLaune, District 4.

Should you have any other questions, please feel free to contact Tracy Harris, Legislative Administrator at (580) 919-0305.

Received by: *A. Robinson* Date *12/22/25*
Signature

Print Signature: *Anna Robinson* Date *12/22/25*



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December 29, 2025

Record of Facts Relating to KL-CY-2025-031, KL-CY-2025-032, KL-CY-2025-033

The five (5) resolutions listed below were transmitted via hand delivery by Executive Branch Administrative Assistant Suzanne Wise to Legislative Administrator Tracy Harris on December 29, 2025. Chairman SpottedBird left three (3) resolutions unsigned. The Kiowa Tribe Constitution provides: *Article VII-Executive Branch, Sections 4. (f) The Chairman shall have the power to sign any enactment passed by the Legislature into law or to veto with written explanations any enactment passed by the Legislature within ten days of passage and presentment of a certified enactment from the Legislature to the Chairman; **provided, that if the Chairman takes no action within ten days, the enactment shall become law in accordance with this Constitution.*** In accordance with the Constitution, the unsigned enactments became Tribe Law upon the expiration of the ten-day window following passage by the Legislature and subsequent presentment to the Chairman.

1. KL-CY-2025-029 The Executive Succession and Signature Succession Act of 2025. Sponsor, Cole DeLaune, District 4.
2. KL-CY-2025-030 The Second Amendment to the Kiowa Tribe Sponsorship Act. Sponsor, Cole DeLaune, District 4.
3. KL-CY-2025-031 The First Amendment to the Equity in Social Media Access by Government Branches Act. Sponsor, Cole DeLaune, District 4. **(unsigned by the Chairman)**
4. KL-CY-2025-032 The Direct Aid to Kiowa Families Act of 2025. Sponsor, Cole DeLaune, District 4. Co-sponsors, Kyle Ataddley, District 1; Michael Primus, District 2; Timothy Satepauhoodle, District 3; Tiya Rosario, District 5; Ben Wolf, District 6, Warren Queton, District 7. **(unsigned by the Chairman)**
5. KL-CY-2025-033 The Emergency Housing Act of 2025. Sponsor, Cole DeLaune, District 4. Co-Sponsor, Tiya Rosario, District 5. **(unsigned by the Chairman)**

Michael Q. Primus II

Michael Q. Primus II
Speaker of the Legislature